economy and seizing the opportunity offered by digitalization of production of goods and services.

Third, the fundamental construct of the Constitution to protect the privacy of citizens from the government, which is part of our fundamental rights, is being sought to be turned on its head by seeking to exclude private businesses from the use of personal data while giving overriding access to the government to not only personal data of persons but also non-personal data of businesses.

Fourth, in today's virtual world, there are no national boundaries for storage and access to stored data. An overnationalistic view on localization of data would only hurt our interests.

For example, the US does not restrict the use of personal data for business purposes, except where it is really a matter of privacy defined precisely. The EU has also developed extensive regulations to encourage free use of non-personal data. It is time India, too, considers a law for the use of data, including personal data, by businesses to provide a competitive advantage to our businesses. Sensitive or critical personal data needs to be defined narrowly, the access to which can cause real harm to the person concerned. There is nothing sensitive about a bank account number, caste or religion of a person. There is no need to define these as sensitive personal data.

The bill proposes massive administrative machinery and elaborate procedures to obtain the consent of the 'data principal' for use of personal data. If enacted, it would usher in a regime worse than the licence permit raj that destroyed private enterprise in industrialization. There should be a more liberal and easier process to obtain the consent of a person for use of personal data. Willingly provided information while filling up an application or an interaction should suffice to obtain a consent that is 'free, informed, specific, clear and capable of being withdrawn'. That said, misuse of private data must be as punishable as breach of privacy.